

26STCV06969 26STCV06969

County: los-angeles

Division: Civil Law and Motion

Department: 735

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Wiles, et al. v. Patel, et al.

Defendants' Amended Motion to Dismiss

Whatever

may be the eventual merits of defendants' substantive reliance on the attorney-client privilege and Evidence Code section 954, the court does not have a free-floating power to dismiss untethered to some established procedure (e.g. demurrer, motion for judgment on the pleadings, summary judgment etc.) for which defendants must comply with that procedure's requirements. Defendants' motion does not identify the procedure from which the "motion to dismiss" springs; the "attorney-client privilege" is not a procedure. (Compare McDermott, Will & Emery v Superior Court (2000) 83 Cal.App.4th 378, 380-381[judgment on the pleadings].)

Conclusion

The

motion is denied.

Defendants

shall give notice.